

Amendment No. 1 to HB0858

Kumar
Signature of Sponsor

AMEND Senate Bill No. 1382

House Bill No. 858*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 56-7-3501, is amended by adding the following as new subdivisions:

() "Associated conditions" means the symptoms or side effects associated with stage 4 advanced metastatic cancer, blood cancer, or treatment of such cancers and which, in the judgment of the healthcare provider, further jeopardizes the health of a patient if left untreated;

() "Stage 4 advanced metastatic cancer" means cancer that has spread from the primary or original site of the cancer to nearby tissues, lymph nodes, or other areas or parts of the body;

SECTION 2. Tennessee Code Annotated, Section 56-7-3502, is amended by adding the following as a new subsection:

(h)

(1) Notwithstanding this section, and except as provided in subdivision (h)(3), a health benefit plan that provides coverage for stage 4 advanced metastatic cancer, blood cancer, and associated conditions shall not require use of a step therapy protocol before the health benefit plan provides coverage of an approved prescription drug to an enrollee who has received a diagnosis of stage 4 advanced metastatic cancer or blood cancer.

(2) For an approved prescription drug prescribed for an associated condition in this section, the treating healthcare provider shall inform the health

benefit plan that the condition is an associated condition of stage 4 advanced metastatic cancer or blood cancer when requesting authorization.

(3) This subsection (h) does not apply to the group insurance plans offered under title 8, chapter 27.

(4) This subsection (h) does not prevent a health carrier, health benefit plan, or utilization review organization from requiring a patient to try an AB-rated generic equivalent product, interchangeable biological product, or biosimilar product prior to providing coverage for the equivalent branded prescription drug.

(5) Each treating healthcare provider who prescribes an approved prescription drug to a patient pursuant to this section shall submit an annual report to the department of health by such date and in such manner as the commissioner of health may prescribe by rule, that includes the number of stage 4 advanced metastatic cancer and blood cancer cases treated, the approved prescription drug involved in treatment, and the overall six-month survival rate for the cases treated.

(6) As used in this subsection (h), "approved prescription drug" means a prescription drug that is:

(A) Approved by the United States food and drug administration;

(B) Consistent with best practices for the treatment of stage 4 advanced metastatic cancer or blood cancer;

(C) Supported by peer-reviewed, evidence-based literature consistent with the National Comprehensive Cancer Network Drugs and Biologics Compendium for the treatment of stage 4 advanced metastatic cancer or blood cancer; and

(D) On the health benefit plan's prescription drug formulary.

SECTION 3. Tennessee Code Annotated, Section 56-7-3504(a), is amended by deleting "and includes a state or local insurance program, under title 8, chapter 27" and

substituting "and, except as provided in § 56-7-3502(h)(3), includes a state or local insurance program, under title 8, chapter 27".

SECTION 4. The commissioner of commerce and insurance and the commissioner of health may promulgate rules to effectuate this act. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 5. This act takes effect January 1, 2026, the public welfare requiring it, and applies to policies or agreements entered into, renewed, or amended on or after that date.